

Tentative Rulings for August 24, 2026

Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306850	BALDI vs BALDI BROS., INC.	MOTION FOR ATTORNEYS' FEES

Tentative Ruling: Defendant Baldi Bros., Inc.'s Motion for Attorney's Fees is granted in the reasonable reduced amount of \$88,941.00 (applying a 25% negative multiplier.)

In general, California follows the "American Rule" regarding entitlement to attorney's fees, whereby each party bears its own attorney's fees unless such fees are expressly provided for by statute, or are included as part of the terms of a contract. (CCP §1021; *Reynolds Metal Co. vs. Alperson* (1979) 25 Cal. 3d 124, 127.) Attorney's fees as an allowable cost item are governed by CCP §1033.5(a)(10) and (c)(5), and motions for such fees are governed by CRC 3.1702.

The court may properly award attorney's fees when a contract provides for the allowance of attorney's fees and suit is instituted to enforce the provisions of the contract: the trial court decides who is the prevailing party, and fixes attorney's fees pursuant to Civil Code § 1717. Section 1717 applies to contract provisions for the recovery of attorney's fees, whether such provisions are unilateral (that is, allowing only one party to recover), or reciprocal (such as one allowing recovery by a "prevailing party".) (*Santisas vs. Goodin* (1998) 17 Cal. 4th 599, 614).

BBI asserts that Plaintiff brought this action to enforce the BSA; and, that the Court's 5/26/26 ruling found it was the prevailing parties by entering judgment in its favor. Notably, the FAC does not contain a cause of action for breach of contract. Nonetheless, the BSA provides:

If either Party files an action or brings any proceeding against the other *arising out of this Agreement*, the prevailing Party shall be entitled to recover as an element of its costs of suit, and not as damages, reasonable attorney's fees. *The "prevailing party" shall be the Party who is entitled to recover its costs of suit, whether or not suit proceeds to final judgment. A Party not entitled to recover its costs shall not recover attorney's fees. No sum for attorney's fees shall be counted in calculating the amount of a judgment for purposes of determining whether a Party is entitled to its costs or attorney's fees.* (Dec.Keeney ¶ 5, Ex. "4", BSA § 7.2.) (emphasis added.)

Plaintiff disputes that BBI is the prevailing parties for purposes of an attorneys' fees award on the ground that Civil Code § 1717 only allows attorneys' fees for the party who recovered a *greater relief* in the action on the contract. Plaintiff cites authority for the proposition that no party prevailed on the contract. It is accurate that the court may determine that neither party was the prevailing party where the result of the litigation is mixed. (Civil Code § 1717(b)(1); see also *Hsu v. Abbata*, (1995), 9 Cal.4th 863, 874-875.) In *Hsu*, the Court cited to *Nasser v. Sup. Ct.* (1984) 156 Cal.App.3d 52, 57-60, where "a lessee brought a declaratory relief action against the lessor to validate an option to renew and establish the amount of rent due during the extension period." (*Id.* at 875.) "The trial court validated the option but fixed the rent at an amount substantially higher than the lessee had argued for. Given this mixed result, the Court of Appeal held that the trial court

had acted properly in finding that there was no prevailing party under section 1717” (*Ibid.*) Plaintiff argues that the outcome of this action was a similar “mixed” result.

Plaintiff argues that the only cause of action that supports a request for attorneys’ fees is the 4th cause of action for declaratory relief. The Court’s ruling on that claim was limited to a finding that the BSA was valid and controlling, and expressly made no further finding. (5/26/26 Court Ruling.) Plaintiff relies on this to support his argument that attorneys’ fees must be limited to the 4th cause of action because it is the only claim “on the contract”, as required by Civil Code § 1717(b)(1). However, there is no dispute that the BSA is valid and controls including the attorneys’ fees provision.

Plaintiff argues alternatively that the Court should substantially reduced the attorneys’ fees because they are unreasonable, excessive, duplicative, and over litigated. The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

Lodestar

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party’s attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Notably, Plaintiff is not challenging the hourly rates of the attorneys or support staff who worked on the case. Thus, no reduction is warranted.

Plaintiff does challenge specific entries in BBI’s counsel’s billing records as duplicative or excessive. However, BBI’s counsel’s invoices and billing entries are heavily redacted making it extremely difficult for the Court to review. In addition, Plaintiff’s challenge only minimal amounts of the claimed attorneys’ fees. (see Oppo. pp. 12:18-13:2.) Counsel for BBI does not provide sufficient detail regarding the tasks performed. This makes it extremely difficult for the court to calculate a final amount even if certain reductions to time for unreasonable billing entries could be determined. Given this difficulty and what appears to be an unreasonably inflated and seemingly arbitrary request for attorneys’ fees, the Court applies a negative multiplier to the base lodestar request. (*Snoek v.*

ExakTime Innovations, Inc (2023) 96 Cal.App.5th 908, 911, 920-921.) The court must explain the specific reasons for the across-the board percentage reduction. (*Id.* at 921.) However, “[a] trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney over-litigated a case.” (*Id.* citing *Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 744.) Thus, “when a “voluminous fee application” is made ... the court may ... “make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure.” (*Id.* citing *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 40.) “But the court must clearly explain its reasons for choosing the *particular* negative multiplier that it chose; otherwise, the reviewing court is unable to determine that the court had valid, specific reasons for its across-the-board percentage reduction.” (*Id.* citing *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.) The trial court is not required to issue a statement of decision with regard to a fee award, however. (*Id.* citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1140.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2306850	BALDI vs BALDI BROS., INC.	MOTION TO FIX ATTORNEY'S FEES

Tentative Ruling: Defendants, Salvatore M. Baldi; Joseph D. Baldi; and Pasquale J. Baldi’s Motion to Fix Attorney’s Fees is granted the reasonable reduced amount of \$141,648.00 (after application of a 25% negative multiplier).

In general, California follows the “American Rule” regarding entitlement to attorney’s fees, whereby each party bears its own attorney’s fees unless such fees are expressly provided for by statute, or are included as part of the terms of a contract. (CCP §1021; *Reynolds Metal Co. vs. Alperson* (1979) 25 Cal. 3d 124, 127.) Attorney’s fees as an allowable cost item are governed by CCP §1033.5(a)(10) and (c)(5), and motions for such fees are governed by CRC 3.1702.

The court may properly award attorney’s fees when a contract provides for the allowance of attorney’s fees and suit is instituted to enforce the provisions of the contract: the trial court decides who is the prevailing party, and fixes attorney’s fees pursuant to Civil Code § 1717. Section 1717 applies to contract provisions for the recovery of attorney’s fees, whether such provisions are unilateral (that is, allowing only one party to recover), or reciprocal (such as one allowing recovery by a “prevailing party”). (*Santisas vs. Goodin* (1998) 17 Cal. 4th 599, 614).

Individual Defendants assert that Plaintiff brought this action to enforce the BSA; that the Court’s 5/15/26 order found they were the prevailing parties by entering judgment in their favor; and that Plaintiff concedes they are entitled to a portion of the costs claimed in their Memorandum of Costs (MOC). Based on these assertions, the Individual Defendants argue they are the prevailing parties entitled to all attorneys’ fees requested. Notably, the FAC does not contain a cause of action for breach of contract.

Nonetheless, the BSA provides:

If either Party files an action or brings any proceeding against the other *arising out of this Agreement*, the prevailing Party shall be entitled to recover

as an element of its costs of suit, and not as damages, reasonable attorney's fees. *The "prevailing party" shall be the Party who is entitled to recover its costs of suit, whether or not suit proceeds to final judgment.* A Party not entitled to recover its costs shall not recover attorney's fees. No sum for attorney's fees shall be counted in calculating the amount of a judgment for purposes of determining whether a Party is entitled to its costs or attorney's fees. (Dec.Keeney ¶ 5, Ex. "4", BSA § 7.2.) (emphasis added.)

Plaintiff disputes that Individual Defendants are the prevailing parties for purposes of an attorneys' fees award on the grounds that Civil Code § 1717 only allows attorneys' fees for the party who recovered a *greater relief* in the action on the contract. Plaintiff cites authority for the proposition that no party prevailed in the contract. It is accurate that the court may determine that neither party was the prevailing party where the result of the litigation is mixed. (Civil Code § 1717(b)(1); see also *Hsu v. Abbata*, (1995), 9 Cal.4th 863, 874-875.) In *Hsu*, the Court cited *Nasser v. Sup. Ct.* (1984) 156 Cal.App.3d 52, 57-60, where "a lessee brought a declaratory relief action against the lessor to validate an option to renew and establish the amount of rent due during the extension period." (*Id.* at 875.) "The trial court validated the option but fixed the rent at an amount substantially higher than the lessee had argued for. Given this mixed result, the Court of Appeal held that the trial court had acted properly in finding that there was no prevailing party under section 1717" (*Ibid.*) Plaintiff argues that the outcome of this action was a similar "mixed" result.

However, the plain language of the BSA provides otherwise. Individual Defendants are entitled to recover its costs of suit pursuant to its recently filed MOC (costs of suit.) Plaintiff challenged some but, not all of Individual Defendants' claimed costs in its motion to tax/strike costs.

Plaintiff argues that the only cause of action that supports a request for attorneys' fees is the 4th cause of action for declaratory relief. The Court's ruling on that claim was limited to a finding that the BSA was valid and controlling and expressly made no further finding. (5/26/26 Court Ruling.) Plaintiff relies on this to support his argument that attorneys' fees must be limited to the 4th cause of action because it is the only claim "on the contract", as required by Civil Code § 1717(b)(1). However, there is no dispute that the BSA is valid and controls including the attorneys' fees provision.

Plaintiff argues alternatively that the Court should substantially reduced the attorneys' fees because they are unreasonable, excessive, duplicative, and over litigated. The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information such as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) However, "[t]estimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Martino*, 182 Cal.App.3d 553, 559. See also *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375-1376.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's

declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

Lodestar

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Notably, Plaintiff is not challenging the hourly rates of the attorneys or support staff who worked on the case. Thus, no reduction is warranted.

Plaintiff does, however, challenge specific entries in Individual Defendants' counsel's billing records as duplicative or excessive, as follows:

- 9/25/24 – 9/26/24 re draft the Answer: Two experienced attorneys billed 2.3 hours at \$575 per hour to prepare the Answer with one attorney billing more time to review that it took the other attorney to draft it. Allow Mr. Sikkema's time of 1.2 hours to draft and finalize the Answer. Court disallows Mr. Wulfson's 1.1 hours to review the Answer.
- 10/7/24 – 10/14/24 re prepare a CMC statements: Two experienced attorneys billed 1.7 hours at \$575 per hour; and one staff member billed .4 at \$250 per hour. Allow L. Proctor's .4 hour. Court disallows the remaining 1.7 hours.
- 7/12 – 7/14/25 re review the MSJ: Two attorneys billed 5.3 hours to review the MSJ. Allow 2.1 at \$435 per hour. Court disallows the remaining 3.2 hours.
- 10/1/25 re draft reply to MSJ: Two attorneys billed 8.6 to draft/review. Allow Mr. Keeney's 6.4 hours at \$435 per hour to draft. Court disallows Mr. Wulfson's 2.4 hours to review.
- 10/13/25 re prepare for the MSJ hearing: Two attorneys billed 5.6 hours for preparation. Allow Mr. Keeney's 3.2 hours at \$435 per hour. Court disallows Mr. Wulfson's 2.4 hours.
- 11/4/25 re jury instructions/verdict forms: Plaintiff asserts that two attorneys are billed for review but, there is only one entry. Court allows Mr. Keeney's 1.6 hours at \$435 per hour.
- 11/20/25 – 11/23/25 re drafting motion for nonsuit: Two attorneys spent 6.9 hours on one motion. Allow Mr. Keeney's 3.2 hours at \$435 and Mr. Wulfson's .6 to

outline the motion. Court disallows Mr. Keeney's 3.1 hours to prepare to draft the motion.

- *11/26/25 – 12/1/25 re drafting mediation brief:* Two attorneys spent 4.2 hours on the brief. Allow Mr. Keeney's 2.6 hours at \$435. Court disallows Mr. Wullfson's 1.6 hours.
- *2/2/26 re review oppo/draft reply re motion for nonsuit:* Two attorneys spent 2.9 hours. Allow Mr. Keeney's 1.8 hours at \$435 per hour. Court disallows Mr. Wullfson's 1.1 hours.
- *2/3/26 re draft reply re motion for nonsuit:* Mr. Keeney spent an additional 2.9 hours drafting the reply. Court allows Mr. Keeney 1.5 hours at \$435 per hour for additional work. Court disallows Mr. Keeney's 1.4 hours.
- Plaintiff also challenges nineteen entries claiming they are questionable and may be related to arbitration. However, only two entries indicate "arbitration", which entries are disallowed: 10/21/25 1.4 hours at \$575 re "disclosures in arbitration"; and 12/23/25 0.6 hours at \$575 re "outline issues needed for arbitration."

Plaintiff also challenges all entries (63.5 hours) for preparing the MSJ/MSA for a total of \$44,143. The total hours is excessive. However, Plaintiff has not challenged any specific entries other than those amounts disallowed above. As a result, the Court would have to guess which additional entries should be disallowed – a difficult, time-consuming, and ultimately inaccurate analysis.

Counsel for Individual Defendants does not provide sufficient detail regarding the tasks performed. In addition, Plaintiff's challenge only minimal amounts of the claimed attorneys' fees. (see Oppo. pp. 12:18-13:2.) Counsel for BBI does not provide sufficient detail regarding the tasks performed. This makes it extremely difficult for the court to calculate a final amount even if certain reductions to time for unreasonable billing entries could be determined. Given this difficulty and what appears to be an unreasonably inflated and seemingly arbitrary request for attorneys' fees, the Court applies a negative multiplier to the base lodestar request. (*Snoek v. ExakTime Innovations, Inc* (2023) 96 Cal.App.5th 908, 911, 920-921.) The court must explain the specific reasons for the across-the board percentage reduction. (*Id.* at 921.) However, "[a] trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney over-litigated a case." (*Id.* citing *Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 744.) Thus, "when a 'voluminous fee application' is made ... the court may ... 'make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure.'" (*Id.* citing *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 40.) "But the court must clearly explain its reasons for choosing the *particular* negative multiplier that it chose; otherwise, the reviewing court is unable to determine that the court had valid, specific reasons for its across-the-board percentage reduction." (*Id.* citing *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.) The trial court is not required to issue a statement of decision with regard to a fee award, however. (*Id.* citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1140.)

Plaintiff seeks \$199,734.00, which is reduced to be total of \$188,864.00, less \$47,216.00 (applying a 25% negative multiplier.) \$141,648.00.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2306850	BALDI vs BALDI BROS., INC.	MOTION TO TAX COSTS

Tentative Ruling: Plaintiff's Motion to Tax Costs is granted in part.

<u>Item No.</u>	<u>Allow</u>	<u>Tax/Strike</u>
1 (Filing and Motion Fees)	\$2,030.00	\$1,224.75
11 (Court reporter fees)	\$4,051.00	\$645.06
13 (Models, enlargements, photocopies)	\$0	\$1,197.86
15 (Other)	<u>\$0</u>	<u>\$2,397.86</u>
Total	\$6,081.00	\$5,465.53

Plaintiff brings this motion pursuant to Cal. Rules of Court ("CRC"), Rule 3.1700, which provides that a prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of the mailing of the entry of judgment An extension for filing this document can be given by the court or through an agreement by the parties. "[T]he court may extend the times for serving and filing the cost memorandum or notice of motion to strike or tax costs for a period not to exceed 30 days." (*Id.* at (b)(3).)

The losing party may dispute any or all of the items in the prevailing party's costs memorandum. (CRC, Rule 3.1700(b)). Technically, a motion to strike challenges the entire costs bill whereas a motion to tax challenges particular items or amounts. But, the terms are often used interchangeably and there is no difference in the procedural rules. (CRC, Rule 3.1700(b).)

Unlike the costs memorandum, a motion to tax costs based on factual matters must be supported by declarations. (*County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114.) For instance, where "reasonableness" is challenged, conclusory allegations that the item was "neither necessary nor reasonable" do not satisfy the objecting party's burden. (*Id.*; *Jones, supra.* at 1266.) If the items on their face appear to be proper charges, the verified costs memorandum is prima facie evidence of their propriety, and the burden is on the opposing party to show that they were not reasonable or necessary. (*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776; *Jones, supra.* at 1266.)

Pursuant to CCP §1033.5(c)(1), certain items are allowable costs, including filing and motion fees, service of process fees, and deposition costs. Costs must be both reasonable in amount and reasonably necessary to the conduct of the litigation. (CCP §1032; §1033.5(c)(2) and (3).) To obtain a costs award, the prevailing party must serve and file a memorandum of costs. (CRC, Rule 3.1700(a).) Supporting documentation such as bills or invoices is not required, unless costs are put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.)

CCP §1033.5 also provides a list of costs that are allowable and those that are not. CCP §1033.5(c)(4) provides that any items not identified as allowable and not specifically

identified as prohibited, may be permitted at the Court's discretion. "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP §1033.5(c)(2).)

In ruling on a motion to tax costs, the court must first determine "whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable." (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking the expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

Plaintiff challenges specific entries in the MOC, which entries are analyzed below:

Item No. 1 (Filing Fees): Under CCP § 1033.5(a)(1), filing fees are allowable costs, which must also be reasonably necessary to the conduct of the litigation and reasonable in amount. (CCP § 1033.5(c).) Plaintiff challenges \$1,224.75 out of a total of \$3,254.75. Notably, Individual Defendants did not submit a worksheet itemizing any of the costs in the motion. As a result, Plaintiff asserts that the total allowed should be \$2,030.00, which represents: 1) \$450 first appearance/answer filing fee multiplied by the three Individual Defendants (\$1,350.00); 2) \$500 to file an MSJ; 3) three motion filing fees of \$60 for a motion to quash subpoena, ex parte to continue trial, and motion for nonsuite (\$180). Plaintiff asserts that the remaining \$1,224.75 is not explained or supported. Plaintiff speculates that these Defendants are claiming *electronic filing fees*, which are already being claimed in Item No. 14. However, this is inaccurate.

In response, Individual Defendants assert that out of the \$1,224.75, \$818.75 are the filing fees for their Petition for Writ of Mandate. They argue it is recoverable even though the Petition was denied because they were the prevailing parties in the underlying action and by operation of CRC Rule 8.493(a)(1)(B). However, Plaintiff points out that under CRC, Rule 8.493(a)(2), "The opinion or order resolving the proceeding must specify the award or denial of costs." This did not occur here. (see 11/13/25 Order of Court of Appeal.) Thus, \$818.75 is stricken/taxed.

In addition, Individual Defendants assert that the remainder (\$406) was for "various stipulations, the motion for judgment, and E-filing fees. (Dec.Keeney ¶ 2, Ex. "A".) Exhibit "A" is a document entitled "All Costs by Matter", which itemizes the filing fees. Significantly, other than the filing fees for the Petition (discussed above), the entries in Exhibit "A" exceed the costs charged by the court, which may include messenger fees or some other unexplained charges. However, no invoices have been provided in support. As a result, the court tax/strike \$1,224.75 and allow \$2,030.00.

Item No. 11 (Court reporter fees): CCP § 1033.5(b)(5) provides that transcripts of court proceedings not ordered by the court are not allowable as costs. (see also, *Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 58 [court reporter fees are a different expense than transcripts].) Plaintiffs' MOC contains an amount for "Court reporter fees as established by statute" in the amount of \$4,696.28. Plaintiff challenges \$645.06 on the basis that no explanation nor supporting documentation was provided.

In response, Individual Defendants argue that this cost was for deposition transcripts for depositions noticed by Plaintiff, which are recoverable. (CCP § 1033.5(c)(4).) They also argue that the transcripts were used for numerous filings and were therefore, reasonably necessary.

In reply, Plaintiff asserts that Individual Defendants have improperly included deposition costs that should have been stated in Item No. 4. Plaintiff also asserts that the amounts asserted in the Opposition cannot be reconciled with the MOC amounts (e.g., a \$900 transcription charge for a purported hearing on 11/5/25 that never occurred.) (Request for Judicial Notice, Ex. “1”). Further, Plaintiff is unaware of any transcripts of court proceedings ordered by the Court (Item No. 9.)

Nonetheless, Plaintiff acknowledges that \$4,051.22 are accounted for, and are not being challenged. Thus, \$4,051.22 is allowed and \$645.06 is stricken/taxed.

Item No. 13 (Models, enlargements, and photocopies of exhibits): Plaintiff challenges \$1,197.86 in photocopy costs. Costs for exhibits including costs to rent equipment, are allowed if they “were reasonably helpful to aid the trier of fact.” (CCP § 1033.5(a)(13).) Plaintiff asserts that such costs must have been presented to the trier of fact. (*Segal v. ASICS America Corp.* (2022) 12 Cal.5th 651, 665.) Plaintiff had the burden to prepare trial binders and exhibit binders for the Court and defense counsel. (Dec.Perez ¶ 16.) No models or enlargements were used at trial. (*Id.* ¶ 17.) Plaintiff concludes photocopying costs were unnecessary and should be taxed/stricken.

In response, Individual Defendants assert that they still needed to prepare trial binders, and that such costs are recoverable in the court’s discretion. (*Segal, supra.* at 668.)

In reply, Plaintiff argues that *Segal* indicates the court has discretion to award such costs where an adequate showing has been made but, Individual Defendants made no such showing. And, no invoice was provided indicating what was contained in defense counsel’s separate binders or how the \$1,197.86 was calculated. Plaintiff’s arguments are more persuasive here. Thus, this item is taxed/stricken.

Item No. 15 (Other): Plaintiff also challenges \$2,397.86 as there is no supporting evidence. In response, Individual Defendants assert that \$1,197.86 was for document production costs, which is the same item claimed in Item No. 13 above. As such, it is duplicative. They also claim the remaining \$1,200 was for their expert, which costs they “withdraw.” Thus, the entire amount on the MOC is taxed/stricken.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2306850	BALDI vs BALDI BROS., INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Final Judgment was entered on 5/26/26; the court lacks jurisdiction to compel arbitration.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2400857	A. vs MIMMS	MOTION TO STRIKE COMPLAINT ON 3RD AMENDED COMPLAINT

Tentative Ruling: Defendant Canyon Lake Property Owners Association’s (“Defendant” or “CLPOA”) Motion to Strike is denied.

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.
- (c) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (d) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.) On a motion to strike, as with a demurrer, “the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal. App. 4th 981, 984, n. 2.) A motion to strike is the proper vehicle to attack punitive damages claim where the facts alleged do not rise to the level of fraud, malice or oppression. (CCP §§ 435-436; *Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.)

In order to be eligible for punitive damages, Plaintiff is required to show that Defendant’s conduct rises to the level of oppression, fraud or malice. (CC § 3294(a); See *American Airlines v. Sheppard Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1049.) Malice is defined as conduct which is “intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights ... of others.” (*Id.* at § 3294(c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard” of another’s rights. (*Id.* at § 3294(c)(2).) Fraud means an “intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention. . .of thereby depriving a person of property or legal rights or otherwise causing injury.” (*Id.* at § 3294(c)(3).)

When exemplary damages are requested, a pleading is only sufficient if factual details supporting such a claim are specifically alleged. (*James v. Herbert* (1957) 149 Cal.App. 2d 741, 750.) Merely relying on a cause of action’s general underlying facts is not sufficient to establish oppression, fraud or malice. (*Turman v. Turning Point of Central California* (2010) 191 Cal.App. 4th 53, 64.)

The grounds for a motion to strike must appear on the face of the pleading or by way of judicial notice. (CCP § 437.) Here, CLPOA’s motion relies on improper extrinsic evidence on a motion to strike.

Security Services Agreement

First, the TAC alleges that CLPOA A “entered into a security services agreement with ALLIED UNIVERSAL that expressly required CANYON LAKE POA to interview and approve each ALLIED UNIVERSAL security officer before that officer was permitted to work on Canyon Lake property,” and that CLPOA’s own Executive Director admitted under oath that “this contractually required approval process was never adhered to” because the association was “far too busy.” (TAC ¶ 35.) CLPOA labels this allegation “false,” arguing that the contract “states that employee interviews shall be conducted ‘at Association’s discretion.’” (Mot. at 6:8–10.) CLPOA’s related assertions—that Mimms

was a licensed guard who passed a background check, and that Allied employed dozens of officers at a time—suffer the same defect discussed below: they appear nowhere on the face of the TAC, and in any event a state guard card is no substitute for the individualized interview-and-approval process CLPOA itself undertook to perform.

Here, the security contract is not attached to or incorporated in the TAC, is not before the court, and is not the subject of any request for judicial notice. CLPOA's characterization of the agreement is pure extrinsic evidence, and its argument is a factual dispute over the meaning and operation of a contract—matters categorically outside the scope of a motion to strike. (CCP§ 437, subd. (a); *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Whether the screening obligation was mandatory in its terms, and whether CLPOA's own executive understood and treated officer screening as an undertaking the association then consciously abandoned, are questions for the trier of fact upon a full evidentiary record—including Mr. Kazakoff's sworn testimony—not questions to be resolved against the pleader on a motion that accepts the pleading's allegations as true.

Indeed, in ruling on Allied's prior motion in this very action, the court sustained Allied's objections to plaintiff's opposing declaration "to the extent they are opposing a motion to strike, which tests the pleadings alone and not the evidence or other extrinsic matters." (June 16, 2026, ruling, citing *SKF Farms, supra*, 153 cal.app.3d at p. 905 ["a demurrer tests the pleadings alone and not the evidence or other extrinsic matters"].) That rule is not a one-way street. CLPOA cannot defeat well-pleaded factual allegations by substituting its own unsworn factual narrative for the allegations of the operative complaint. nor has CL:POA invoked judicial notice: where a motion to strike is based on judicially noticeable matter, that matter "shall be specified in the notice of motion, or in the supporting points and authorities" (CCP § 437, subd. (b)), and CLPOA's papers specify none.

CLPOA next argues that Plaintiff's allegations "improperly conclude that an HOA has a duty to regulate who individual homeowners invite onto their separately owned property while omitting that Mimms was added to the guest list by Plaintiff's grandmother at Plaintiff's mother's request." (Mot. at 6:15–17.) Nothing about that account appears on the face of the TAC; it is extrinsic, it is disputed, and Plaintiff is under no obligation to plead a defendant's preferred defenses in her own complaint.

As noted by Plaintiff, this argument is legally beside the point. The TAC does not seek to hold CLPOA liable for failing to regulate whom individual homeowners invite onto their separately owned lots. It alleges that CLPOA controlled security and the common areas of a privately gated community (TAC ¶¶ 5, 14, 16); that CLPOA contracted for a security patrol and undertook—then consciously abandoned—a contractual officer-screening function (TAC ¶ 35); and that CLPOA deployed, and failed to supervise or remove, the very officer who used the marked vehicle, uniform, credentials, and apparent authority of his post to access, groom, and remove a minor from the community, including during his work shifts (TAC ¶¶ 23, 25, 31). Whether Mimms also appeared, at some point, on a family guest list is a factual defense CLPOA may present to the jury on causation or comparative fault. It does not render the TAC's allegations "false" as a matter of law, and it is not a ground to strike them.

CLPOA faults Plaintiff for not marshaling "dates, times, witness statements, or documentation" proving Mimms was on duty during particular acts of misconduct. (Mot. at 6:18– 21.) But to survive a challenge to the pleading, "the complaint need only allege

facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872 [student pleading negligent hiring and supervision arising from sexual abuse was not required to identify the responsible personnel by name or position].) And a plaintiff "may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550, quoting *Pridonoff v. Balokovich* (1951) 36 Cal.2d 788, 792.) Such a pleading must state the facts upon which the belief is founded. (*Woodring v. Basso* (1961) 195 Cal.App.2d 459, 465.)

Here, the TAC does what *Doe* and *Woodring* require and exactly what this Court's June 16, 2026, ruling, citing *Woodring*, *supra*, 195 Cal.App.2d at p. 465, found missing from the SAC. The TAC alleges the on-duty conduct on information and belief and expressly identifies the basis for that belief: Allied's duty schedules, patrol logs, and employee records maintained for all officers deployed to the Canyon Lake account; CLPOA's own access-control and gate-entry records; and the vehicle-based nature of Mimms' patrol duties, which required him to conduct rounds throughout the community and interact with residents, including minor children, during each assigned shift. (TAC ¶¶ 23, 25.) That the corroborating records reside in Defendants' exclusive possession is precisely why information-and-belief pleading exists. A child victim of clandestine abuse cannot be required to plead her abuser's timesheets before discovery is complete.

Also noted by Plaintiff is that the June 16, 2026, ruling also observed that allegations made on information and belief "may be considered a per se admission that Plaintiff does not possess personal knowledge of facts supporting these claims." That concern—grounded in *Woodring*—is answered where, as here, the pleading states the factual foundation for the belief, precisely as the Supreme Court's rule in *Doe* contemplates. More fundamentally, the CLPOA-specific punitive damages allegations of paragraphs 35 and 36 are not pled on information and belief at all: they rest on the terms of CLPOA's own contract, the sworn admission of CLPOA's own Executive Director, and the Board's own renewal decision. (TAC ¶¶ 35–36.)

Malice and despicable conduct by CLPOA

Punitive damages may be recovered upon a showing of "oppression, fraud, or malice." (Civ. Code, § 3294, subd. (a).) "Malice" includes "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) Pleading in the language of the statute "is not objectionable when sufficient facts are alleged to support the allegation." (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6–7.) Conscious disregard is established where the defendant "was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 896.) A deliberate failure to act in the face of a known danger will support punitive damages. (See *Pfeifer v. John Crane, Inc.* (2013) 220 Cal.App.4th 1270, 1299 [substantial evidence of malice where defendant, aware of the danger, failed to warn or act]; *Nolin v. National Convenience Stores, Inc.* (1979) 95 Cal.App.3d 279, 288–289 [substantial evidence of conscious disregard where defendant knew of and failed to remedy a dangerous condition].) And such allegations withstand attack at the pleading stage.

In *Penner v. Falk* (1984) 153 Cal.App.3d 858, 867, tenants assaulted by an intruder alleged that the landlord had known for years of dangerous conditions and criminal activity on the premises, held the power to correct them, and failed to act; the Court of Appeal reversed an order striking the punitive damages allegations, holding the pleaded facts would support an award of punitive damages. *Penner* was decided under the pre-1987 version of section 3294, before the Legislature added the “despicable conduct” element and the clear-and-convincing standard; that amendment changed what must be pled, not whether such allegations are tested on their face at the pleading stage—and the TAC pleads the despicable-conduct element expressly, with the specific supporting facts set out below. (See also *Nolin, supra*, 95 Cal.App.3d at p. 288 [discussing *O’Hara v. Western Seven Trees Corp.* (1977) 75 Cal.App.3d 798, in which a complaint alleging the landlord knew of prior assaults on the premises was held immune from attack at the pleading stage].)

Here, the TAC pleads far more than conclusions. It alleges that CLPOA: (1) undertook, by contract, to interview and approve every security officer before deployment into a gated residential community where children live, play, and—as Mimms well knew—exit their school buses; (2) never once performed that screening, by the sworn admission of its own Executive Director, because it was “far too busy”—a conscious, affirmative decision to forgo the specific safeguard designed to keep unfit officers away from residents; (3) deployed Mimms to patrol the community with direct and unsupervised access to minor children without ever interviewing or approving him; (4) maintained no written policies and provided no training of any kind governing how armed security officers were to interact with minor residents, while retaining sole and unilateral authority to remove any officer for any reason—an authority it never exercised as to Mimms; and (5) when the foreseeable harm materialized, responded not by investigating its safety failures or protecting its residents, but by managing public relations (“might blow over and not become a thing”) and renewing the security contract for three more years without a single new safeguard. (TAC ¶¶ 22, 35–36.)

As noted by Plaintiff, these allegations describe an entity that knowingly assumed responsibility for the safety of a gated community’s residents, charged those residents fees for that security (TAC ¶ 30), and then consciously chose not to perform the officer screening it had promised, not to adopt any child-protective policy, and not to supervise or remove the guard it empowered to move freely among children. Accepting those facts as true, a reasonable jury could find that conduct “base,” “vile,” or “contemptible”—that is, despicable conduct carried on in willful and conscious disregard of the safety of the minor residents in CLPOA’s care. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) *College Hospital* teaches that “despicable conduct” is a substantive limitation requiring more than a willful and conscious disregard of the plaintiff’s interests (*id.* at p. 725)—and the TAC meets it. Unlike the hospital administrator in *College Hospital*, who upon learning of the misconduct attempted to repudiate it (*id.* at pp. 726–727), CLPOA is alleged to have taken no responsive or protective step at any point: before the abuse, it abandoned the very screening it had promised; after the abuse, it investigated nothing and reformed nothing, renewing the same unsupervised arrangement while its Executive Director expressed hope that the assault of a child resident “might blow over and not become a thing.” (TAC ¶¶ 35–36.) Nor does CLPOA’s refrain that malice “will never be established by mere speculation” (Mot. at 6:26–28) advance its motion: the centerpiece of the TAC is not speculation but the sworn admission of CLPOA’s own Executive

Director. Whether Plaintiff will ultimately persuade the jury by clear and convincing evidence is a question for trial; at the pleading stage the only question is whether specific supporting facts are alleged. They are.

Also as noted by Plaintiff, the authorities on which CLPOA relies only underscore the point. In *McDonell v. American Trust Co.* (1955) 130 Cal.App.2d 296, 299, *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29–32, and *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872, the complaints offered bare characterizations—“aware,” “refused,” “intentional, willful and fraudulent”—without supporting facts.

The TAC, by contrast, pleads who (Kazakoff and the Board of Directors), what (the abandoned contractual screening obligation, the absence of any policies or training concerning minors, the unexercised removal authority, the post-arrest response, and the safeguard-free contract renewal), how the knowledge is shown (Kazakoff’s sworn admission, the terms of CLPOA’s own agreement, and the Board’s receipt of Kazakoff’s communication), and the manner of conscious disregard (deliberate abdication of each safeguard as to an officer given unsupervised access to children). That is exactly the factual particularity the cases contemplate. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166; *Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 962–963.) It likewise satisfies the standard this Court articulated in its June 16 ruling: “a pleading is only sufficient if factual details supporting such a claim are specifically alleged” (June 16, 2026 Ruling, citing *James v. Herbert* (1957) 149 Cal.App.2d 741, 750), and it does far more than “[m]erely rely[]” on the “general underlying facts” of the negligence causes of action (*Turman, supra*, 191 Cal.App.4th at p. 64): paragraphs 35 and 36 are dedicated punitive damages allegations pleading institutional decisions, named decisionmakers, and a sworn admission that appear nowhere in the general negligence counts.

CC § 3294(b)

Section 3294(b) permits punitive damages against an employer where the employer (1) “had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others,” or (2) “authorized or ratified the wrongful conduct for which the damages are awarded,” or (3) “was personally guilty of oppression, fraud, or malice.” (Civ. Code, § 3294, subd. (b).) For a corporate employer, the requisite knowledge, ratification, or malicious act must be on the part of an officer, director, or managing agent. (Civ. Code, § 3294, subd. (b); *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 572.)

Plaintiff is right that CLPOA’s motion collapses this disjunctive statute into a single requirement—advance knowledge of Mimms’ unfitness. But where the malice alleged is the entity’s own institutional conduct, undertaken through the decisions of its officers, directors, and managing agents, the entity is “personally guilty” of malice and no showing of advance knowledge of a particular employee’s unfitness is required. (Civ. Code, § 3294, subd. (b).) Here, Plaintiff does not rely on the advance-knowledge prong as to CLPOA – Mimms was Allied’s employee – but on the second and third prongs: authorization and ratification by CLPOA’s directors and managing agent, and CLPOA’s personal guilt of malice through their own institutional decisions. The TAC alleges the despicable conduct at issue is CLPOA’s deliberate abdication of officer screening, its policy and training vacuum concerning minors, its failure to exercise its removal authority, and its safeguard-free renewal decision—institutional decisions made at the top of the organization, not merely vicarious responsibility for Mimms’ torts. (TAC ¶¶ 35–36.)

A “managing agent” is an employee who “exercise[s] substantial discretionary authority over significant aspects of a corporation’s business” such that his or her decisions ultimately determine corporate policy. (*White, supra*, 21 Cal.4th at pp. 566–567, 576–577.) The TAC alleges that Eric Kazakoff, CLPOA’s Executive Director, held operational authority over CLPOA’s security operations, including implementation of the security services agreement with Allied and the decision whether to perform the contractually required officer screening, and that his decisions determined CLPOA’s security and resident-safety practices throughout the relevant period. (TAC ¶ 36.) It further alleges that the CLPOA Board of Directors—the governing body of the association, whose members are “director[s]” within the express text of section 3294(b)—made or authorized the decision to renew Allied’s contract after Mimms’ arrest without requiring any new safeguard, after receiving Kazakoff’s post-arrest communication. (TAC ¶ 36.) The TAC then ties each challenged decision—the decision not to perform the contractual screening, the decision not to adopt any policy governing officer interactions with minors, and the decision to renew the contract without safeguards—to Kazakoff and/or the Board acting within the scope of their authority. (TAC ¶ 36.) Nothing more is required at the pleading stage. Unlike the SAC provisions previously before this Court, these are not generic references to unnamed “officers, directors, or managing agents”; they are specific, named actors matched to specific, alleged decisions.

CLPOA contends that “[p]ost-tort conduct cannot establish pre-tort malice or conscious disregard.” (Mot. at 5:20.)

First, ratification is an express statutory pathway to entity punitive liability, and ratification by definition occurs after the conduct at issue. (Civ. Code, § 3294, subd. (b); *College Hospital, supra*, 8 Cal.4th at p. 726 [ratification generally occurs where the employer demonstrates an intent to adopt or approve the conduct].) “Such ratification may be inferred from the fact that the employer, after being informed of the employee’s actions, does not fully investigate and fails to repudiate the employee’s conduct by redressing the harm done and punishing or discharging the employee.” (*Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 621 [decided on demurrer],

Here, the TAC alleges that when Mimms’ arrest became public, CLPOA’s leadership investigated nothing and protected no one; instead, its Executive Director communicated with the Board for the purpose of minimizing public attention—expressing hope the assault of a child resident “might blow over and not become a thing”—and the Board thereafter renewed the very security contract at issue for three additional years without adopting a single new safeguard. (TAC ¶¶ 35–36.) Those allegations state the Board’s and Kazakoff’s adoption and approval of the wrongful institutional conduct for which punitive damages are sought as to CLPOA—the abandonment of screening, supervision, and oversight of the officers given access to minor residents—and the Board’s receipt of Kazakoff’s post-arrest communication supplies the pled actual knowledge that *College Hospital* requires. (*College Hospital, supra*, 8 Cal.4th at p. 726.)

Second, the TAC does not rest its malice showing on post-arrest conduct. The pre-tort facts—the conscious abandonment of contractual officer screening, the deployment of an unscreened officer with unsupervised access to children, the absence of any policy or training concerning minors, and the unexercised removal authority—all preceded and enabled the assaults, and independently establish conscious disregard. (TAC ¶ 35.) The post-arrest response is additional, corroborating evidence of the same institutional

indifference; the weight of that inference is for the trier of fact, and it is not a basis to strike the allegations from the pleading.

Paragraphs 5 and 23 supporting Plaintiff's negligence causes of action

Items 1 and 2 of the motion do not target punitive damages allegations I. They seek to excise the allegation that directors, administrators, employees, agents, and contractors are “granted access by CANYON LAKE POA” (TAC ¶ 5) and the allegation that some of Mimms’ threats, intimidation, and transport of Plaintiff occurred while he was on duty, in a position of ostensible authority, under the supervision of Allied and CLPOA (TAC ¶ 23). These are core factual allegations of access, control, course and scope, and supervision that support Plaintiff’s first and second causes of action for negligence and negligent hiring, supervision, and retention—claims whose sufficiency CLPOA has not challenged by demurrer.

As noted by Plaintiff, matter is “irrelevant” only if it is not essential to the claim, is neither pertinent to nor supported by an otherwise sufficient claim, or demands relief not supported by the allegations. (CCP § 431.10, subds. (b), (c).) Paragraphs 5 and 23 are essential to Plaintiff’s claims. CLPOA does not contend otherwise; it simply disagrees with them and asks the Court to resolve that disagreement in its favor on extrinsic evidence at the pleading stage. That is not the purpose of a motion to strike. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683; June 16, 2026, Ruling [a motion to strike “tests the pleadings alone and not the evidence or other extrinsic matters”].) CLPOA’s factual defenses—its reading of the contract, the guest-list account, its position on Mimms’ duty status—may be tested on summary judgment or at trial, on evidence, with Plaintiff afforded the opportunity to respond in kind.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2600732	NOLTEN vs COUNTY OF RIVERSIDE	MOTION FOR LEAVE TO AMEND

Tentative Ruling: Petitioner Nicolas Nolten’s (“Petitioner”) Motion for Leave to File a First Amended Petition is denied.

Under Code of Civil Procedure section 473(a), a court may allow a party to amend any pleading “in furtherance of justice, and on such terms as may be proper.” While California courts generally maintain a “policy of great liberality in permitting amendments at any stage of the proceeding” (*Rocky Mountain Export Co. v. Colquitt* (1960) 179 Cal.App.2d 204, 207), the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898).

A judge properly denies a motion for leave to amend if the proposed amended pleading fails to state facts sufficient to state a cause of action or if the amendment would be futile (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230). Furthermore, a judge should deny leave to amend when the facts are undisputed and the nature of the claim is clear, but no amendment would change the result (*Komorsky v. Farmers Ins. Exch.* (2019) 33 CA5th 960, 971).

Nonetheless, the Court finds that Petitioner's motion fails to meet the legal requirements for amendment and seeks to introduce a procedurally improper document into the record.

The Proposed Amendment is Legally Unnecessary and Futile In his motion, Petitioner acknowledges that the proposed First Amended Petition "does not contain new allegations or defenses" but rather "expands upon the original allegations and defenses" (Petitioner's Motion for Leave to Amend at 6:20-24). Petitioner further admits that the purpose of the amendment is not to correct a mistake or add a claim, but to "properly and fully present [Petitioner's] arguments so that they can be complete when heard on the merits" (Declaration of Nicolas Nolten in Support of Motion at ¶ 12).

Under Code of Civil Procedure section 473(a)(1), amendments must be "in furtherance of justice." Because Petitioner concedes the original Petition is already adequate and that the amended filing adds no new legal theories or jurisdictional facts, the amendment is legally unnecessary. When an amendment would be futile or fails to add facts sufficient to change the result of the litigation, denial is appropriate (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230).

Failure to Comply with Notice Pleading Requirements Under California's notice pleading system, a pleading must present ultimate facts in "ordinary and concise language" (Code of Civil Procedure section 425.10(a)(1)). Petitioner's proposed First Amended Petition is the opposite of concise; it is an over 50-page document that functions as a legal brief rather than a pleading.

The proposed petition contains over 30 pages of detailed legal and factual arguments regarding eleven incidents of alleged misconduct, including extensive citations to the administrative record, hearing exhibits, and over twenty California cases (Proposed First Amended Petition at 11-49). A pleading is intended to provide notice of the factual basis of the claims sufficient to allow the opposing party to prepare a defense, not to express all legal arguments Petitioner wishes to offer on the merits (*Doe v. City of Los Angeles* (2007) 42 Cal. 4th 531, 549-550).

The Court finds that Petitioner is attempting to file an oversized opening brief under the guise of an amended petition. Allowing Petitioner to embed over 30 pages of argument into the pleadings would circumvent the Court's scheduling orders and the page limitations established by California Rule of Court 8.504(d).

While the Court recognizes Petitioner's *pro per* status and his diligence in spending approximately 50 hours re-drafting the writ petition (Declaration of Nicolas Nolten at ¶ 13), the Court cannot allow a procedurally defective document that flagrantly fails to comply with the conciseness required by Code of Civil Procedure section 425.10(a)(1). Petitioner's original Petition remains the operative pleading, and his legal arguments shall be heard through the normal briefing process.